

Kunwar Singh v. State of U.P. (recovery citation; cl. 6.14 instalments)

High Court of Judicature at Allahabad · Division Bench · 2 August 2018 · WRIT - C No. - 25869 of 2018 · **Writ disposed of; apply under cl. 6.14 within 15 days.**

HEADNOTE

Writ against a demand notice and recovery citation of Rs.1,00,025 disposed of without examining the petitioner's one-time settlement plea. Petitioner directed to apply under Clause 6.14 of the U.P. Electricity Supply Code, 2005 within 15 days; any such application to be decided by a reasoned speaking order within 30 days.

FACTUAL SUMMARY

Kunwar Singh challenged a 6 February 2018 demand notice and recovery citation of Rs.1,00,025 issued by the electricity department. He claimed he had already deposited under a one-time settlement with the department, but said he remained willing to pay if granted easy instalments. Department counsel submitted that the petitioner had an alternative remedy under Clause 6.14 of the Electricity Supply Code, 2005, and that any such application would be entertained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding dues

HOLDING

The writ challenging the demand notice and recovery citation is disposed of without a merits decision. The petitioner is directed to move an application under Clause 6.14 of the Electricity Supply Code, 2005 within 15 days; if so presented, the concerned respondent shall decide it by a reasoned and speaking order within 30 days of presentation of a certified copy of this order. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD ALREADY DEPOSITED UNDER THE ONE-TIME SETTLEMENT, AND THE VALIDITY OF THE 06.02.2018 DEMAND AND RECOVERY CITATION OF RS.1,00,025

Writ disposed of without examining the settlement or the demand on merits; relegated to cl. 6.14. ¶ 4-5